

26NNCV02683 26NNCV02683

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#15 - TALIN SANJOUGHLI vs DIGNITY COMMUNITY CARE DBA GLENDALE MEMORIAL HOSPITAL AND HEALTH CENTER, et al.

The complaint alleges two causes of action: professional negligence and corporate negligence. The demurrer is directed only to the second cause of action.

At the pleading stage, the Court does not decide whether Plaintiff can prove negligent credentialing, inadequate oversight, or deficient hospital protocols. The Court decides only whether the complaint alleges ultimate facts sufficient to give notice of a direct negligence theory against the hospital.

Here, the complaint alleges specific categories of institutional duty: ensuring provider competence, and establishing and enforcing patient-safety policies and protocols in the clinical setting at issue. (Compl., ¶¶ 34-35.) It also alleges specific categories of institutional breach: failure to ensure competent providers, and failure to maintain, implement, or enforce policies concerning bowel-injury recognition, specialist consultation, and postoperative monitoring. (Compl., ¶¶ 34-37.) These allegations give fair notice of a direct claim against the hospital based on its own alleged acts and omissions, and are enough to survive a demurrer. The demurrer of Defendant Dignity Community Care dba Glendale Memorial Hospital and Health Center to the second cause of action is overruled.

Defendant shall file and serve its answer within 10 days of service of notice of this order.